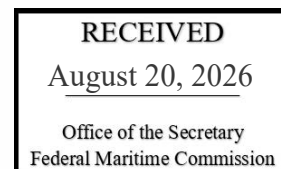




**Small Claim Form for Informal Adjudication
and Information Checklist**

Federal Maritime Commission, Washington, DC.



Informal Docket No. 2075(I)

Ocean Blue Express, Inc.
(Claimant)

vs.

Maersk A/S and Maersk Agency U.S.A., Inc.
(Respondent)

I. The claimant, Ocean Blue Express, Inc., is a corporation organized and existing under the laws of the State of California, with its principal place of business located at 255 W. Victoria St., Compton, CA 90220. Claimant operates as a licensed Non-Vessel-Operating Common Carrier (NVOCC).

II. The respondent named above are:

1. Maersk A/S, a corporation organized and existing under the laws of Denmark, operating as a Vessel Operating Common Carrier (VOCC) in the foreign commerce of the United States under FMC Organization No. 000219, subject to the jurisdiction of the FMC under the Shipping Act of 1984, as amended.
- Principal Place of Business and Mailing Address: 50 Esplanaden, DK-1098 Copenhagen K, Denmark
2. Maersk Agency U.S.A., Inc., a corporation organized and existing under the laws of the State of Delaware, operating as the registered general agent and representative for Maersk A/S in the United States, subject to the jurisdiction of the FMC.
- Principal Place of Business and Mailing Address: 180 Park Ave., Building 105, Florham Park, NJ 07932, USA

III. Under Booking No. 268552028 and Master Bill of Lading No. 268552028, Claimant tendered Shipper-Owned Container (SOC) Tank No. DKOU2503276 to Respondent at the Port of Houston (Bayport Terminal) on April 21, 2026. The unit was received in apparent good order and condition, as evidenced by Respondent's official Terminal Gate-In Record marking. While under Respondent's sole custody and control, the SOC tank sustained structural damage. Respondent subsequently demanded that Claimant immediately remove and repair the damaged unit. In direct reliance on Respondent's demand and to mitigate catastrophic cargo and environmental loss, Claimant incurred USD 21,278.42 in direct, out-of-pocket mitigation and repair expenses. *Respondent arbitrarily and persistently refuses to indemnify Claimant for these direct mitigation costs, improperly invoking a void B/L package limitation.* Respondent's conduct constitutes an *unjust and unreasonable practice* relating to the receiving, handling, storing, and delivering of property under 46 U.S.C. §41102(c).

IV. N/A (This claim is not for overcharges)

V. 6 U.S.C. §41102(c) (Unreasonable practices relating to property and claim handling).

VI. Claimant was injured by Respondent's unlawful refusal to indemnify direct damage mitigation expenses incurred at Respondent's express instruction. Claimant requests an award of damages in the amount of USD 21,278.42, plus pre-judgment interest, administrative costs, and any other relief the Commission deems just and proper.

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in Subpart S 946 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

- **Exhibits Ensure:**
- **Exhibit A:** Master Bill of Lading (No. 268552028)
- **Exhibit B:** Terminal Gate-In EIR Record
- **Exhibit C:** Respondent's Removal & Repair Instruction Email
- **Exhibit D:** Itemized Invoices & Proof of Mitigation Expenses (\$21,278.42)
- **Exhibit E:** Written Statement of Rejection & Rebuttal provided to Respondent
- **Exhibit F:** Email Correspondence #1
- **Exhibit G:** Email Correspondence #2
- **Exhibit H:** FMC CADRS Correspondence

Attach memorandum or brief in support of claim. Also attach bill of lading, copies of _____
correspondence or other documents in support of claim.

(Date) 08/20/2026

(Claimant's signature)

(Claimant's address)

255 W. Victoria st.
Compton, CA 90220

VERIFICATION

State of California, County of L.A., ss: _____, being
first duly sworn on oath deposes and says that he or she is president and CEO
of the Claimant.

The claimant, **SUNG HO SUN**, the President and CEO of the Claimant, is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of CA, County of
LA, this 20th day of August, 2026. (Seal)

Seeyong Yu
(Notary Public)

My Commission expires, 04/24/2030

